572 U. S., at 723 (second alteration in original). In close cases such as this one, the inquiry may well involve a substantial amount of evidence, but that inquiry is nevertheless critical to avoid the "unacceptable risk that persons with intellectual disability will be executed" contrary to the Eighth Amendment. *Id.*, at 704.

* * *

In cases presenting multiple IQ scores, courts should continue to consider multiple IQ scores in light of this Court's precedents and "'the views of medical experts.'" *Moore*, 581 U. S., at 5. If a conflict among the States or lower courts emerges and a case properly presents the issue, it may be appropriate for this Court to weigh in with more specific guidance about the permissible method or methods by which courts must analyze such scores. The Court rightly decides that it is inappropriate to do so in this case. I therefore concur in the decision to dismiss the writ of certiorari as improvidently granted.

Page Proof Pending Publication

JUSTICE THOMAS, dissenting.

In 1997, Joseph Clifton Smith murdered Durk Van Dam. The trial court, accepting the jury's recommendation, sentenced Smith to death. Smith lost his appeal in 2001. But a year later, in *Atkins* v. *Virginia*, 536 U. S. 304 (2002), this Court held for the first time that convicted murderers like Smith cannot be executed if they are deemed insufficiently intelligent, which the Court suggested would require that they had an IQ of 70 or below. *Id.*, at 308–309, and n. 3, 316–321. Such persons could not be executed, the Court said, even if they "know the difference between right and wrong," even if they "are competent to stand trial," and even if they are intelligent enough to deserve other "criminal sanctions." *Id.*, at 318. The Court did not pretend that the Constitution had ever been understood to impose such a rule. *Id.*, at 340–341 (Scalia, J., dissenting). Just 13 years earlier,

it had acknowledged the opposite. *Penry* v. *Lynaugh*, 492 U. S. 302, 330–335 (1989). But the Court set aside the Constitution and imposed a new rule anyway. The result was predictable: To avoid execution, Smith tried to convince courts that he is not intelligent enough to be executed.

Today, the Court rewards Smith's efforts. It dismisses the State's petition challenging the lower courts' vacatur of his death sentence under *Atkins*. But Smith is not insufficiently intelligent to be executed. He can read at an 11th-grade level. He took five IQ tests and did not once receive a score of 70 or below, instead scoring 75, 74, 72, 78, and 74. The lower courts held that he could not be executed based only on the hypothetical *possibility* that these IQ scores were all wrong and that his IQ is in fact 70 or below. I join JUSTICE ALITO's opinion because it persuasively explains why that approach is statistically indefensible.

As this case shows, though, *Atkins* has bred only confusion and absurdity. Nothing in the text or history of the Constitution supports *Atkins*. It should be overruled.

Page Proof Pending Publication

I

A

In 1997, just two days after being released from custody for burglary, Joseph Clifton Smith murdered Durk Van Dam. Smith plotted with his friend Larry Reid to rob Van Dam, whom they heard was carrying cash. They lured Van Dam to an isolated location. There, Smith and Reid beat Van Dam and attacked him with a power saw, eventually killing him. Smith and Reid then divided the money that they stole from Van Dam. Smith told one person that he had hit Van Dam on the head and cut him, and he told another that he had hit, cut, and stabbed Van Dam.

The police discovered Van Dam's badly mutilated body in a wooded area. He had injuries from the saw on his neck, shoulder, and back. He also suffered a hemorrhage under his scalp, broken ribs, and brain swelling. The broken ribs

caused one of Van Dam's lungs to collapse. A forensic pathologist testified that 35 blunt-force injuries caused his death. He died trying to defend himself.

A jury convicted Smith of murdering Van Dam and recommended that he be sentenced to death. The trial court found three aggravating circumstances and no significant mitigating circumstances. The three aggravating circumstances were that Smith was on leave from his term of imprisonment for burglary at the time of the murder; that the murder occurred during a robbery; and "that the murder was especially heinous, atrocious, or cruel." *Smith* v. *State*, 795 So. 2d 788, 797, n. 1, 841–842 (Ala. Crim. App. 2000) (*per curiam*). As for mitigating circumstances, the trial court rejected Smith's arguments that his bad upbringing or lack of intelligence justified a sentence other than death. It explained that Smith's upbringing did not "'justify a[n] act of senseless rage directed at an innocent human being.'" *Id.*, at 841. And it found that Smith's "'lack of intelligence is not an excuse for murder, especially in the context of this case.'" *Ibid.* Smith "knew he had," in his words, "F—— Up," and, "while in control [of himself,] he savagely attacked" Van Dam. *Ibid.* (internal quotation marks omitted). The trial court accepted the jury's recommendation and sentenced Smith to death.

Page Proof Pending Publication

The Alabama Court of Criminal Appeals affirmed the conviction and death sentence. *Id.*, at 842. Both the Supreme Court of Alabama and this Court denied certiorari. *Ex parte Smith*, 795 So. 2d 842 (2001); *Smith* v. *Alabama*, 534 U. S. 872 (2001).

B

A year later, this Court's decision in *Atkins* opened a new avenue for convicted murderers such as Smith to challenge their death sentences.

Atkins arose out of another robbery and murder. Daryl Atkins and a friend abducted and robbed a United States airman named Eric Nesbitt. 536 U. S., at 307; *id.*, at 338

(Scalia, J., dissenting). After abducting and robbing him, Atkins shot Nesbitt eight times, killing him. *Id.*, at 307 (majority opinion). The jury found Atkins guilty of capital murder. At the penalty phase, the jury heard "extensive evidence" of Atkins's "alleged mental retardation," including testimony from a psychologist that Atkins "was 'mildly mentally retarded'" with an "IQ of 59," and testimony from another psychologist who concluded that Atkins was "of 'average intelligence, at least.'" *Id.*, at 308–309; *id.*, at 338–339 (Scalia, J., dissenting). The jury also learned that Atkins had "16 prior felony convictions for robbery, attempted robbery, abduction, use of a firearm, and maiming." *Id.*, at 339. Atkins had previously attacked a different victim with a gun, "knocked her to the ground, and then helped her up, only to shoot her in the stomach." *Ibid.* After hearing all the evidence, the jury sentenced Atkins to death. *Ibid.*; *id.*, at 309 (majority opinion).

Page Proof Pending Publication

This Court held that Atkins's sentence was unconstitutional "cruel and unusual punishment" under the Eighth Amendment. *Id.*, at 311, 321. The Court said that the Eighth Amendment prohibits all "'[e]xcessive' sanctions." *Id.*, at 311. Whether a punishment was excessive, the Court said, depended not on the "standards that prevailed . . . when the Bill of Rights was adopted," but on the "'evolving standards of decency that mark the progress of a maturing society.'" *Id.*, at 311–312 (quoting *Trop* v. *Dulles*, 356 U. S. 86, 100–101 (1958)). According to the Court, "the American public, legislators, scholars, and judges ha[d] deliberated" over whether "the death penalty should ever be imposed on a mentally retarded criminal" and decided that it should not. *Atkins*, 536 U. S., at 307, 313–317. The Court concluded that there was a "national consensus" against imposing the death penalty on the mentally retarded, largely because 18 States barred it. *Id.*, at 314–316. The Court itself agreed with this supposed "consensus"; it was "not persuaded that the execution of mentally retarded criminals will measurably

advance the deterrent or the retributive purpose of the death penalty." *Id.*, at 321.

The *Atkins* Court promised that it would allow States to define mental retardation. It admitted that there was "serious disagreement" about "determining which offenders are in fact retarded." *Id.*, at 317. Accordingly, the Court decided to "'leave to the State[s] the task of developing appropriate ways to enforce the constitutional restriction upon [their] execution of sentences.'" *Ibid.* So, despite the Court's holding that the Eighth Amendment forbids "the execution of mentally retarded offenders," whether an offender was "mentally retarded" would depend on state rules. *Ibid.*

Still, the Court suggested that someone with an IQ above 70 could not be mentally retarded for Eighth Amendment purposes. See *id.*, at 308, n. 3, 316–318; *Brumfield* v. *Cain*, 576 U. S. 305, 345–346 (2015) (THOMAS, J., dissenting). The Court drew from "clinical definitions of mental retardation" that include three necessary elements. *Atkins*, 536 U. S., at 318. First, the offender must have "'subaverage intellectual functioning'" based primarily on IQ tests. *Id.*, at 308, n. 3, 318. Second, he must have "significant limitations in adaptive skills such as communication, self-care, and self-direction." *Id.*, at 318. And third, these limitations must have manifested before age 18. *Ibid.* "'Mild' mental retardation," the Court explained, "is typically used to describe people with an IQ level of 50–55 to approximately 70." *Id.*, at 308, n. 3. Apparently drawing on that category's upper limit, the Court noted that "only five [States] ha[d] executed offenders possessing a known IQ less than 70 since" 1989. *Id.*, at 316. It was thereafter reasonable to understand *Atkins* to allow States to execute people with IQs above 70. See *Brumfield*, 576 U. S., at 345–346 (THOMAS, J., dissenting).

Page Proof Pending Publication

C

In the years since, the Alabama courts have faithfully applied that understanding of *Atkins*. When called to imple-

ment it, they observed that other "states with statutes prohibiting the execution of a mentally retarded defendant require that a defendant, to be considered mentally retarded, must have significantly subaverage intellectual functioning (an IQ of 70 or below), and significant or substantial deficits in adaptive behavior" "before the defendant reached age 18." *Ex parte Perkins*, 851 So. 2d 453, 456 (Ala. 2002); see also *Ex parte Smith*, 213 So. 3d 214, 224 (Ala. 2003). Consistent with *Atkins*, the Alabama courts held that "[a]ll three factors must be met in order for a person to be classified as mentally retarded for purposes of an *Atkins* claim." *Smith* v. *State*, 213 So. 3d 239, 248 (Ala. 2007). And, consistent with *Atkins*, they held that the prisoner has the burden to prove that he is mentally retarded by a preponderance of the evidence. 213 So. 3d, at 252.

When it came to applying *Atkins* to Smith, the Alabama courts had no trouble recognizing that he did not satisfy the first requirement and therefore is not mentally retarded. The Court of Criminal Appeals explained that, by 2008, Smith had scored 75, 74, and 72 on three IQ tests. *Smith* v. *State*, 71 So. 3d 12, 19–20 (2008). Though his lowest score suggested that Smith's true IQ "could be . . . as low as 69" taking account of the error range for that score, it could also be "as high as 75." *Id.*, at 19. Smith asked the court "to apply that margin of error to conclude that . . . he is mentally retarded." *Id.*, at 20. But the court rejected that argument, which would require "expanding the definition of mentally retarded" to include people whose true IQ is likely above 70. *Ibid.*

Unable to persuade the Alabama courts that he was mentally retarded, Smith sought habeas relief in federal court, arguing that the Alabama courts unreasonably applied *Atkins*. See 28 U. S. C. §2254(d). The District Court initially denied habeas relief for the straightforward reason that the Court of Criminal Appeals did not act unreasonably when it refused to "reduc[e]" Smith's lowest "IQ score of 72 such that

Page Proof Pending Publication

[it] would . . . fall within the mental retardation range." *Smith* v. *Thomas*, No. 05–cv–0474 (SD Ala., Sept. 30, 2013), ECF Doc. 59, pp. 61–62. Smith's own expert, the court explained, testified that his scores were at best *close* " 'to those individuals who would be considered mentally retarded' "—a conclusion that "is incompatible with a determination that Smith is mentally retarded himself." *Id.*, at 60 (emphasis deleted). And, the court observed, "every IQ test administered to Smith during his developmental period yielded an unadjusted score above the cutoff for mental retardation." *Id.*, at 61, n. 24.

The Eleventh Circuit disagreed. It thought that it was "unreasonable" to suppose that Smith did not have significantly subaverage intelligence. *Smith* v. *Campbell*, 620 Fed. Appx. 734, 750–751 (2015). The court ordered the District Court to give Smith a new hearing for reconsideration of his *Atkins* claim *de novo*. 620 Fed. Appx., at 751–752.

Page Proof Pending Publication

D

Smith would go to his hearing armed with new decisions of this Court. In *Hall* v. *Florida*, 572 U. S. 701 (2014), this Court acknowledged that States can require defendants to show an IQ of 70 or below in order to establish that they are mentally retarded, but held that States must in some manner account for the test's standard error range. States may, "consistently with *Atkins*," define mental retardation to require an IQ of "70 points" or below if they consider "the IQ test's standard error of measurement." *Id.*, at 711–712. Under Florida's test, as the Court understood it, a prisoner with a single IQ score of 71 whose error range included 70 would be conclusively not mentally retarded even if "other evidence" suggested that his "true IQ" was in fact 70 or below. *Id.*, at 712, 713. The Court thought that this "strict IQ test score cutoff of 70" was impermissible because it "ignores the inherent imprecision of" IQ tests and "risks executing a person who suffers from intellectual disability." *Id.*, at 712–713, 723. *Hall* therefore held it unconstitutional

to treat as decisive a single above-70 score whose error range includes 70. *Id.*, at 723–724. In imposing this new constitutional rule, *Hall* relied on "medical experts" and "professional studies." *Id.*, at 709–710.

Hall did not tell courts what to do when low scores whose error ranges touch 70 are paired with multiple higher scores whose error ranges do not. The Court, as in *Atkins*, left States without guidance: "[T]he analysis of multiple IQ scores jointly is a complicated endeavor." 572 U. S., at 714. Exactly how courts should weigh multiple IQ scores remained unclear. See *id.*, at 742–743 (ALITO, J., dissenting).

The next two decisions further walked back *Atkins*'s promise to allow States to define mental retardation and instead outsourced the project to clinical practice. In *Moore* v. *Texas*, 581 U. S. 1 (2017) (*Moore I*), the Court reiterated that "courts must account for" a test's error range "where an IQ score is close to, but above, 70" because "other evidence" may show that "'[the] individual's true IQ score'" is 70 or less. *Id.*, at 13–15. The Court also told lower courts not to "overemphasiz[e] . . . perceived adaptive strengths" when considering whether the prisoner has "significant adaptive deficits" under the second element of the mental-retardation definition. *Id.*, at 15–16. And it criticized the use of factors under that element that invite "lay perceptions of intellectual disability" and "lay stereotypes" to guide the analysis. *Id.*, at 18. Then, in a second *Moore* v. *Texas*, 586 U. S. 133 (2019) (*per curiam*) (*Moore II*), the Court reaffirmed these additional restrictions. *Id.*, at 139–143. The Court in *Moore I* and *Moore II* based its conclusions, not on States' actual practices, as in *Atkins*, but "solely on what it deem[ed] to be medical consensus about intellectual disability." See *Moore I*, 581 U. S., at 22, 29 (ROBERTS, C. J., dissenting).

Page Proof Pending Publication

E

After these decisions, Smith returned to the District Court. *Smith* v. *Dunn*, No. 05–cv–00474 (SD Ala., Aug. 17, 2021), ECF Doc. 135. Since the last hearing,

Smith's expert had administered a test on which Smith scored 78, making his claim of mental retardation even more implausible. App. 167, 218. The expert admitted that "78 is definitely above 70 to 75 IQ range" and indicates an IQ as high as 83. *Id.*, at 167, 218–219. In addition, another test his own expert administered indicated that Smith reads "at an 11th-grade level"—a result that the expert admitted is "not consistent" with mental retardation. *Id.*, at 228–229.

In 2017, the State's expert administered a fifth IQ test on which Smith, again, scored higher than 70. Smith scored a 74. Even in isolation, that score yielded a 90th percentile confidence level that Smith's IQ is 71 to 78. *Id.*, at 268. The State's expert also emphasized that Smith "show[ed] up at an 11th-grade level with regard to sentence comprehension," a fact that is "totally inconsistent with intellectual disability." *Id.*, at 285. Overall, both experts agreed that Smith's IQ scores over 35 years demonstrated a remarkably consistent pattern. *Id.*, at 167, 270. The IQ scores before the District Court were 75, 74, 72, 78, and 74.

Page Proof Pending Publication

Nonetheless, the District Court found that Smith is mentally retarded and therefore that his death sentence was unconstitutional. ECF Doc. 135, p. 7. The court conceded that Smith's performance on the test the State's expert administered is "above what is considered significant subaverage intellectual functioning." *Ibid.* It further acknowledged that "multiple IQ scores . . . taken over a long period of time place him in the borderline range, functioning just above intellectual disability." *Ibid.* The court admitted that "this leans in favor of finding that Smith does not have significant subaverage intellectual functioning." *Ibid.* But it still did "not find it strong enough" to not move on to the second step of Alabama's mental-retardation test and address Smith's "adaptive deficits." *Ibid.* The District Court thought that Smith's scores left it "not clear" whether he was mentally retarded because his lowest score, 72, "*could*

mean his IQ is actually as low as 69." *Id.*, at 5, 10 (emphasis added). So the court moved on. Because of Smith's adaptive deficits, the court found that he has significant subaverage intellectual functioning. After concluding that Smith is mentally retarded, the court vacated his death sentence. *Id.*, at 4–13.

The Eleventh Circuit affirmed. *Smith* v. *Commissioner, Ala. Dept. of Corrections*, 67 F. 4th 1335 (2023) (*per curiam*). The court acknowledged that "[w]hether Smith has significantly subaverage intellectual functioning turns on whether he has an IQ equal to or less than 70." *Id.*, at 1345 (citing *Ex parte Perkins*, 851 So. 2d, at 456). Given that Smith had five IQ scores ranging from 72 to 78, one would have thought that this acknowledgment would have resolved the case against Smith. Nevertheless, the court reasoned that "a district court must move on to consider an offender's adaptive functioning when the lower end of his lowest IQ score is equal to or less than 70," no matter how many higher test results he has. 67 F. 4th, at 1346; accord, *id.*, at 1347. In other words, even if Smith had scored four 120s, a single 72 would allow the court to move on to the other mental-retardation factors. "Smith carried his burden under the intellectual prong," the court held, because he "needed to prove only that the lower end of his standard-error range is equal to or less than 70." *Id.*, at 1349.

Page Proof Pending Publication

When Alabama petitioned this Court for certiorari, we granted the petition and vacated the Eleventh Circuit's judgment. *Hamm* v. *Smith*, 604 U. S. 1 (2024) (*per curiam*). The Court asked for clarification about the Eleventh Circuit's reasoning. *Id.*, at 2. On one reading, the Court thought, the Eleventh Circuit's decision "would suggest a *per se* rule that the lower end of the standard-error range for an offender's lowest score is dispositive." *Ibid.* Another reading, under which the decision would be more defensible, "would suggest a more holistic approach to multiple IQ scores that

considers the relevant evidence." *Ibid.* The Court then invited the Eleventh Circuit to clarify which of those two meanings it intended. *Id.*, at 2–3.

Taking the hint, the Eleventh Circuit clarified that it meant the more "'holistic approach to multiple IQ scores.'" *Smith* v. *Commissioner, Ala. Dept. of Corrections*, 2024 WL 4793028, *1 (Nov. 14, 2024) (*per curiam*). The court, again, upheld the District Court's analysis on the first element because the District Court "found that Smith's IQ scores could not rule out the *possibility* that Smith is intellectually disabled." *Id.*, at *3 (emphasis added). And, based on that reasoning, the court went on to conclude, not that Smith's true IQ is likely 70 or lower, but that it "*could* be less than or equal to 70." *Ibid.* (emphasis added).

This Court, again, granted certiorari. It appeared ready to decide "[w]hether and how courts may consider the cumulative effect of multiple IQ scores in assessing an *Atkins* claim." 605 U. S. 1001 (2025).

Page Proof Pending Publication

Today, however, the Court dismisses the State's petition as improvidently granted, without explanation. The effect of the Court's failure, twice in this case, to bring clarity to precedents that manifestly "lac[k] clarity" is that Alabama will not be able to carry out its lawful sentence. *Moore II*, 586 U. S., at 143 (ROBERTS, C. J., concurring).

II

We should end the hopeless enterprise that this Court today shows it cannot control. Because nothing in the text and history of the Eighth Amendment justifies *Atkins*, it is demonstrably erroneous. And because we cannot favor decisions lying "outside the realm of permissible interpretation" "over the text of the Constitution," we should overrule *Atkins*. *Gamble* v. *United States*, 587 U. S. 678, 711–712 (2019) (THOMAS, J., concurring). *Atkins* also cannot survive this Court's more recent *stare decisis* criteria because it is

egregiously wrong, unworkable, and has created no legitimate reliance interests.

A

Atkins is demonstrably erroneous. It is irreconcilable with the Eighth Amendment's original meaning, and nothing in the common law supports it.

1

The Eighth Amendment prohibits "cruel and unusual punishments." As originally understood, that prohibition concerns cruel and unusual *methods* of punishment. *Grants Pass* v. *Johnson*, 603 U. S. 520, 541–543 (2024); accord, *Aldridge* v. *Commonwealth*, 2 Va. Cas. 447, 449–450 (1824) ("merely applicable to the modes of punishment"). Because capital punishment need not be cruel and has not "long fallen out of use," the "Constitution allows" it. *Bucklew* v. *Precythe*, 587 U. S. 119, 129–130 (2019).

Page Proof Pending Publication

The concept of "cruel" punishments originally meant what it usually means now: "savage" or "barbarous" punishments that "give pain to others, in body or mind." N. Webster, An American Dictionary of the English Language (1828). Thus, punishments like crucifixion or immolation are "cruel," but death, by itself, is not. See *In re Kemmler*, 136 U. S. 436, 446 (1890). In England, capital punishment generally consisted in "being hanged by the neck till dead," 4 W. Blackstone, Commentaries on the Laws of England 370 (1769) (Blackstone), a method that often involved no pain if performed as intended, S. Banner, The Death Penalty: An American History 170 (2002). But for especially "atrocious crimes" such as high treason, English law contemplated enhanced punishments, including "embowelling alive, beheading, and quartering." 4 Blackstone 370. The cruelty of such punishments consisted in the intentional "superadd[ition]" of "terror, pain, or disgrace" to death. *Ibid.* By the founding, these enhanced death sentences were theoretically

still authorized, but they had "'dwindled away' and would for that reason have been 'unusual' in the sense that they were no longer 'regularly or customarily employed.'" *Baze* v. *Rees*, 553 U. S. 35, 97 (2008) (THOMAS, J., concurring in judgment).

Supporters of the Eighth Amendment were concerned that Congress, like Parliament before it, might enhance punishments with cruelty that had by the founding fallen into disuse. See *id.*, at 97–98. One speaker at the Massachusetts ratifying convention complained that the original Constitution "nowhere restrained" Congress "from inventing the most cruel and unheard-of punishments," leaving "*racks* and *gibbets*" as "amongst the most mild instruments of their discipline. 2 Debates on the Constitution 111 (J. Elliot ed., 2d ed. 1891). And Patrick Henry complained that, without a Bill of Rights, Congress could inflict "tortures, or cruel and barbarous punishment[s]." 3 *id.*, at 447–448.

Page Proof Pending Publication

Atkins claims, including Smith's, have nothing to do with these concerns. Executing someone with a particular IQ does not implicate a "method" of execution at all. It certainly does not implicate a method that rises to the level of deliberate and unusual torture. It is therefore beyond the scope of the Eighth Amendment.

2

The only possible historical analogue to *Atkins*'s doctrine was a common-law protection that cannot justify it. At common law, the severely mentally retarded—whom the common law called "idiots"—could not be punished. 4 Blackstone 24–25. The common law protected such people from punishment because their disability is so severe that they lack "knowledge to distinguish between good and evil"—"[t]hey are forgiven for they know not what they do!" A. Highmore, Law of Idiocy and Lunacy 195 (1807) (Highmore). Idiots, said Hale, have "no possibility to understand, what is

forbidden by law to be done, or under what penalties." 1 M. Hale, Pleas of the Crown 34 (1736) (Hale).

In modern parlance, one had to be "severely" or "profoundly" mentally retarded to be a common-law idiot. *Penry*, 492 U. S., at 333. Psychiatrists recognize "four degrees of mental retardation: mild, moderate, severe, and profound." *Smith*, 213 So. 3d, at 248–249, and n. 3. "'Mild' mental retardation," *Atkins* explained, "is typically used to describe people with an IQ level of 50–55 to approximately 70." 536 U. S., at 308, n. 3. People within this category "know the difference between right and wrong and are competent to stand trial." *Id.*, at 318. "Moderate" describes those whose IQs are 35–40 to 50–55. *Smith*, 213 So. 3d, at 249, n. 3. "Severe" describes those whose IQs are 20–25 to 35–40. *Ibid.* And "profound" describes those whose IQs are below 20 or 25. *Ibid.* This Court has explained that common-law idiots generally had IQs around 25, making them severely or profoundly mentally retarded. See *Penry*, 492 U. S., at 333.

Page Proof Pending Publication

The common law therefore provides no support for *Atkins* claims, as this case demonstrates. No one contends that Smith is a common-law idiot. He reads at an 11th-grade level. His IQ is above 70—above the threshold for mental retardation and about triple what is typical of idiots. And, even setting aside IQ entirely, there is no doubt that Smith is able "to distinguish between good and evil," Highmore 195, and that he is able to "understand . . . what is forbidden by law," 1 Hale 34. His own expert "found that . . . Smith knew right from wrong." ECF Doc. 135, p. 3.

* * *

Nothing in our history, from 1791 to 2002, suggests that there is anything unlawful about executing murderers now protected by *Atkins*—let alone one such as Smith who reads at an 11th-grade level and has never scored below 71 on a

single IQ test. We therefore must adhere "to the correct, original meaning" of the Eighth Amendment, not *Atkins*. *Gamble*, 587 U. S., at 712 (THOMAS, J., concurring).

B

Even under its modern approach to *stare decisis*, this Court has "'often'" concluded that precedents must be overruled. *Ramos* v. *Louisiana*, 590 U. S. 83, 116–122 (2020) (KAVANAUGH, J., concurring in part). *Atkins* satisfies the criteria the Court has recently relied on to overrule constitutional precedents. See *Ramos*, 590 U. S., at 120–122.

Atkins is egregiously wrong, unworkable, and has created no legitimate reliance interests. *Ramos*, 590 U. S., at 121–122. *Atkins* is egregiously wrong because it is irreconcilable with original meaning and was poorly reasoned from the start, as more recent Eighth Amendment precedents discrediting its methodology show.* See Part II–A, *supra*; *Atkins*, 536 U. S., at 321–328 (Rehnquist, C. J., dissenting); *id.*, at 337–354 (Scalia, J., dissenting). *Atkins* is also unworkable, as its progeny and this case demonstrate. See Part I, *supra*. Finally, prospective murderers who would argue that they are too unintelligent to be executed are not planning murders in "reliance" on this Court's Eighth Amendment jurisprudence. *Ramos*, 590 U. S., at 122 (opinion of KAVANAUGH, J.). Nor, if they were, would such a reliance interest be "legitimate." *Ibid.* *Stare decisis* is therefore no obstacle to restoring the original meaning of the Eighth

Page Proof Pending Publication

*We recently rejected the premise that the Cruel and Unusual Punishments Clause prohibits all "excessive" punishments. See *Grants Pass* v. *Johnson*, 603 U. S. 520, 541–550 (2024); contra, *Atkins*, 536 U. S., at 311–312. And the Court has stopped using *Atkins*'s "evolving standards of decency" approach to determine the meaning of the Eighth Amendment. *Id.*, at 312. See *Grants Pass*, 603 U. S. 520; *United States* v. *Tsarnaev*, 595 U. S. 302 (2022); *Jones* v. *Mississippi*, 593 U. S. 98 (2021); *Barr* v. *Lee*, 591 U. S. 979 (2020) (*per curiam*); *Bucklew* v. *Precythe*, 587 U. S. 119 (2019); *Madison* v. *Alabama*, 586 U. S. 265 (2019); contra, *Atkins*, 536 U. S., at 311–312.

Amendment. See, *e. g.*, *Dobbs* v. *Jackson Women's Health Organization*, 597 U. S. 215, 263–290 (2022); *Ramos*, 590 U. S., at 105–109.

III

"Some of our most 'egregious' cases have been those in which we have granted relief based on an unfounded Eighth Amendment claim," and *Atkins* is certainly near the top of the list. *Glossip* v. *Gross*, 576 U. S. 863, 905–906 (2015) (THOMAS, J., concurring). *Atkins*'s rejection of "the historical meaning of the [Eighth] Amendmen[t]," see *Ramos*, 590 U. S., at 106, has denied the justice governments have given to murder victims from time immemorial, *Glossip*, 576 U. S., at 905–906 (THOMAS, J., concurring). And it degrades the mildly intellectually disabled by putting them "on a level with . . . infants, imbeciles, and domestic animals"—those who cannot "'have known better.'" C. S. Lewis, The Humanitarian Theory of Punishment, 13 Issues in Religion and Psychotherapy 147, 151 (1987); see *Atkins*, 536 U. S., at 318, 319–320. In a future case, the Court should overrule *Atkins* and restore "the Cruel and Unusual Punishments Clause's fixed meaning in resolving any challenge brought under it." *Grants Pass*, 603 U. S., at 562 (THOMAS, J., concurring). For now, I respectfully dissent.

Page Proof Pending Publication

JUSTICE ALITO, with whom JUSTICE THOMAS joins, and with whom THE CHIEF JUSTICE and JUSTICE GORSUCH join as to Parts I, III, and IV, dissenting.

In *Atkins* v. *Virginia*, 536 U. S. 304 (2002), this Court held that the Eighth Amendment forbids the execution of defendants whom it described, using the standard terminology of the time, as "mentally retarded." *Atkins* did not define that term for Eighth Amendment purposes, and our subsequent decisions on the issue have spawned doctrinal ambiguity and numerous unanswered questions. See, *e. g.*, *Hall* v. *Florida*, 572 U. S. 701, 740–742 (2014) (ALITO, J., dissenting); *Moore* v. *Texas*, 581 U. S. 1, 28–33 (2017) (ROBERTS, C. J., dissenting);

Bowling v. *Commonwealth*, 163 S. W. 3d 361, 369, 375 (Ky. 2005) (enumerating several basic questions that *Atkins* generated but left unresolved).

This case presents one of those questions: How should a court apply a 70-IQ cutoff when a defendant has multiple test scores in the record? As the decisions below demonstrate, our failure to address this recurring question has led to confusion and unsound analysis in lower courts. When the Court granted Alabama's most recent petition in this case, we asked the parties and *amici* to brief this question. 605 U. S. 1001 (2025). Their briefing provided helpful insight on analyzing multiple scores cumulatively. The Court nonetheless dismisses this opportunity to provide much-needed guidance to lower courts, even though six Justices stake out a position on whether the decision below is correct. See *ante*, at 291 (SOTOMAYOR, J., joined by JACKSON, J., concurring).

I respectfully dissent from the Court's decision to leave this important question unanswered. At the very least, we should reverse the lower courts' erroneous analysis of Smith's scores and remand for a fresh consideration of his *Atkins* claim using any sound method. Even if our decision went no further, we would provide clarity and coherence to one aspect of our *Atkins* doctrine. Instead, the Court shies away from its obligation to provide workable rules for capital cases. In doing so, the Court disserves its own death-penalty jurisprudence, States' criminal-justice systems, lower courts, and victims of horrific murders.

Page Proof Pending Publication

I write to clarify the scope of our decisions in *Hall* and *Moore*, offer guidance on how courts may evaluate multiple IQ scores, and explain how the lower courts' decisions in this case contravened psychology, statistics, and precedent.

I

A

Before *Atkins*, a defendant convicted of a capital offense could argue at the sentencing phase of his trial that the

death penalty should not be imposed because his "mental retardation"—a condition that psychologists now term "intellectual disability"—diminished his culpability. *Bobby* v. *Bies*, 556 U. S. 825, 827–828 (2009). Specifically, under *Penry* v. *Lynaugh*, 492 U. S. 302 (1989), a defendant could argue that his disability rendered him "less able than a normal adult" to "act 'deliberately,'" "control his impulses," or "evaluate the consequences of his conduct." *Id.*, at 322–328. Applying this regime, Virginia sentenced Daryl Atkins to death after he unsuccessfully attempted to mitigate his culpability using evidence of intellectual disability.

When Atkins's case made it to this Court, he contended that *Penry*'s individualized approach was insufficient to protect nonculpable defendants under the Eighth Amendment. In particular, Atkins argued that juries could not make "reliable sorting decisions among defendants with mental retardation" and had not "cull[ed] the more culpable from those whose disabilities [should] preclude" a death sentence. Brief for Petitioner in *Atkins* v. *Virginia*, O. T. 2001, No. 00–8452, p. 39. Atkins therefore urged the Court to replace *Penry*'s "case-by-case administration" with a "categorical rule" barring imposition of the death penalty on any "perso[n] with mental retardation." Brief for Petitioner in No. 00–8452, at 39–40. The Court ultimately agreed with Atkins, holding that "the execution of mentally retarded criminals" violates the Eighth Amendment. *Atkins*, 536 U. S., at 321.

Page Proof Pending Publication

One might have expected that the *Atkins* Court, in imposing a new categorical rule, would have also defined the category in question. Yet *Atkins* did not. *Id.*, at 317. That void entailed two consequences. First, States and lower courts would need to develop their own categorical definitions that were susceptible of judicial administration. *Ibid.* Second, because "[i]ntelligence, as measured by IQ, has predominated as the primary criterion for diagnosing" intellectual disability, it followed that IQ would feature in these

definitions and play a central role in adjudicating *Atkins* claims. American Association on Mental Retardation, Mental Retardation: Definition, Classification, and Systems of Supports 25 (10th ed. 2002) (AAMR); see, *e. g.*, *id.*, at 21–23 (cataloging the consistent use of an "IQ Cutoff" as a diagnostic requirement in the five decades leading up to *Atkins*); AAMR 66 (noting that possessing an IQ that is two or more standard deviations below the mean is a "necessary . . . criterion to establish a diagnosis of mental retardation"); American Psychiatric Association, Diagnostic and Statistical Manual of Mental Disorders 41 (rev. 4th ed. 2000) ("The essential feature of Mental Retardation" is an "IQ of about 70 or below").

In the years since *Atkins*, IQ has remained a central component of intellectual-disability diagnoses and *Atkins* claims. On the diagnostic end, "[i]dentifying deficits in intellectual functioning via IQs" continues to be "the standard of practice, as it has been for approximately a century." R. Floyd, R. Farmer, W. Schneider, & K. McGrew, Theories and Measurement of Intelligence, in 1 APA Handbook of Intellectual and Developmental Disabilities 392 (L. Glidden ed. 2021) (APA Handbook). Likewise, governments continue to incorporate IQ thresholds into intellectual-disability definitions that determine a defendant's eligibility for the death penalty. See, *e. g.*, *Ex parte Perkins*, 851 So. 2d 453, 456 (Ala. 2002); Ky. Rev. Stat. Ann. §532.130(2) (West Cum. Supp. 2025).

Page Proof Pending Publication

Initially, *Atkins* entrusted States with the task of developing judicially manageable criteria to define intellectual disability and assess a defendant's IQ. 536 U. S., at 317; *Bies*, 556 U. S., at 831. In the ensuing years, however, this Court has inserted itself into that role and constitutionalized various rules for evaluating intellectual disability. Three of these rules concern IQ cutoffs and test scores.

First, in *Hall*, the Court clarified that States may use a 70-IQ cutoff for *Atkins* claims. *Hall* concerned a Florida

statute that defined "intellectual disability" as an IQ of 70 or less and "deficits in adaptive behavior" that manifested before age 18. Fla. Stat. § 921.137(1) (2013); *Hall*, 572 U. S., at 711. Addressing this provision, this Court concluded:

> "On its face this statute could be interpreted consistently with *Atkins* and with the conclusions this Court reaches in the instant case. Nothing in the statute precludes Florida from taking into account the IQ test's standard error of measurement, and as discussed below there is evidence that Florida's Legislature intended to include the measurement error in the calculation." *Id.*, at 711–712.

The undeniable thrust of this analysis is that a 70-IQ cutoff is constitutional, provided that courts consider measurement error when applying it. If that were not so—if a 70-IQ cutoff could *never* be dispositive of an *Atkins* claim—then *Hall* could not have held that Florida's statute was "consisten[t] with *Atkins*." 572 U. S., at 711. *Hall* thus clarified that the Eighth Amendment does not bar the death penalty when a defendant fails to prove that his IQ is 70 or below. This conclusion cohered with *Atkins*, which keyed its holding to a purported "national consensus" against "execut[ing] offenders possessing a known IQ less than 70." 536 U. S., at 316.

Page Proof Pending Publication

While *Hall* affirmed a 70-IQ cutoff for *Atkins* claims, it imposed a constitutional rule about how courts may apply that cutoff to an IQ test score. At the time of *Hall*, Florida treated a test score as a "final and conclusive" determination of a defendant's IQ and "refus[ed]" to consider possible measurement error. 572 U. S., at 712. Thus, if a defendant failed to produce a test score of 70 or below, Florida courts rejected *Atkins* relief without considering any other evidence. *Hall* rejected Florida's approach. Although *Hall* acknowledged that sufficiently high scores might be dispositive in some cases, 572 U. S., at 715, the Court held that

courts must account for a test's "standard error of measurement," an estimate of the test's possible error, *id.*, at 723–724. To do so, courts must interpret an individual test score using a "confidence interval" that captures a range of IQs, rather than as a single point estimate.[1] If the confidence interval for a score spans 70 or lower, courts may not treat that score as singly dispositive of an *Atkins* claim. 572 U. S., at 723.

Three years later in *Moore*, this Court announced another constitutional rule of IQ analysis. There, a Texas defendant obtained a test score of 74 with a corresponding confidence interval spanning 69 to 79. 581 U. S., at 10. In determining whether the defendant satisfied a 70-IQ cutoff, the Texas Court of Criminal Appeals considered factors beyond the test score and its standard error of measurement. For example, the court noted that the defendant had possibly experienced depression when he took the IQ test. *Ex parte Moore*, 470 S. W. 3d 481, 517–519 (2015). The court also recognized that he had "external motivations to obtain a lower score, such as facing the death penalty" if he scored too high. *Id.*, at 517. Based on these extrinsic details, the Texas court concluded that there was "no reason to doubt" that the defendant's "actual IQ" was in the "higher portion" of the 69-to-79 interval and thus above 70. *Id.*, at 519. The court accordingly denied *Atkins* relief on IQ grounds.

Page Proof Pending Publication

[1] A "confidence interval" is a range of values above and below a single test score. The upper and lower limits of a confidence interval are equal to the test score plus or minus the standard error of measurement or some multiple thereof. For instance, a 68% confidence interval for a score spans one standard error above and below the score, and a 95% confidence interval spans two standard errors above and below. See *Hall*, 572 U. S., at 713; R. Cohen, M. Swerdlik, & E. Sturman, Psychological Testing and Assessment: An Introduction to Tests and Measurement 176 (8th ed. 2013) (Cohen). Although *Hall* held that courts must consider a confidence interval when applying a 70-IQ cutoff to a score, the Court did not specify what confidence level must be used. As a result, *Hall* left lower courts guessing what level suffices. See 572 U. S., at 740–741 (ALITO, J., dissenting).

Moore rejected this analysis, holding that courts may not rely on "factors unique to [the defendant]" to conclude that his "true" IQ falls in one range of a confidence interval rather than another. 581 U. S., at 14. Put differently, *Moore* held that courts may not inflate or deflate estimates of a defendant's IQ based on specific details about him. When determining a defendant's IQ, a court must consider only his test scores and valid statistical analysis.

Our case law has thus laid out three rules concerning IQ and *Atkins* claims. First, *Atkins* does not bar the execution of a defendant who fails to prove an IQ of 70 or lower. Second, when determining whether a defendant has met this 70-IQ threshold, a court may not treat any one score as dispositive without considering a confidence interval based on the test's standard error of measurement. And third, courts may not use extrinsic, defendant-specific details to infer where his IQ falls within a given interval.

Page Proof Pending Publication

B

Although *Hall* and *Moore* announced rules about treating a *single* test score as dispositive, this Court has never explained when courts may treat *multiple* scores as cumulatively dispositive. *Hamm* v. *Smith*, 604 U. S. 1, 2 (2024) (*per curiam*). Our silence on this issue leaves courts without direction on how to address a recurring situation. Because defendants raising *Atkins* claims have usually taken multiple IQ tests, courts must often apply a 70-IQ cutoff to a defendant with several scores. See, *e. g.*, *Smith* v. *Ryan*, 813 F. 3d 1175, 1183–1184 (CA9 2016) (five scores); *State* v. *Escalante-Orozco*, 241 Ariz. 254, 290, 386 P. 3d 798, 834 (2017) (four scores); *Black* v. *Carpenter*, 866 F. 3d 734, 737–738 (CA6 2017) (10 scores); *Jackson* v. *Payne*, 9 F. 4th 646, 653 (CA8 2021) (four scores). See also Pet. for Cert. in *Saldano* v. *Texas*, O. T. 2025, No. 25–5749, p. 6 (four scores). By Smith's count, *Atkins* claims presenting multiple IQ scores have arisen at least 56 times since our decision in *Hall*. See Brief

for Respondent 9, and n. 1; App. to Brief for Appellant 1a–17a. These cases "starkly underscor[e] the need for clarity" on this issue, and our failure to provide it has not gone unnoticed. *Busby* v. *Guerrero*, 175 F. 4th 610, 611 (CA5 2026) (opinion of Higginson, J.). "In a matter of life and death," lower-court judges "must be certain that [they] apply the proper constitutional rule." *Ibid.*

Fortunately, psychometric literature provides various methods for estimating a person's "true" IQ using multiple scores.[2] Although the Constitution does not require courts to adopt any one approach, the medical community's IQ-estimation techniques inform our *Atkins* jurisprudence. *Hall*, 572 U. S., at 710–713. Thus, courts and legislatures may rely on any reasonably sound method of estimating a defendant's "true" IQ. The parties and *amici* discuss several approaches, and I highlight three that appear in the APA's Handbook of Intellectual and Developmental Disabilities.

Page Proof Pending Publication

First, multiple IQ scores may be used to calculate a "composite score." This approach provides a mathematically rigorous way to aggregate scores across different tests into a single, more precise estimate. APA Handbook 415–417. Indeed, a prominent psychology expert whom this Court cited in *Hall* suggests that the composite-score method is appropriate for estimating the "true" IQ of someone "facing the death penalty." W. Schneider, Can't Decide Which IQ Is Best? Make a Composite Score 1 (Jan. 13, 2012), http://assessingpysche.wordpress.com/2021/01/13/cantdecide-which-iq-is-best-make-a-composite-iq-score/; accord, D. Wat-

[2] IQ is measured using a standardized scale that gauges a person's intellectual functioning relative to the overall population. Cohen 323–335. Because these scales are mathematical constructs, there is no such thing as a "real" IQ. W. Schneider, Principles of Assessment of Aptitude and Achievement, in The Oxford Handbook of Child Psychological Assessment 289 (P. Nathan ed. 2013) (Schneider, Oxford Handbook). From a statistical standpoint, however, an individual does have a "true" IQ, which is the expected value of someone's score over a long run of repeated, independent administrations of an IQ test. APA Handbook 396.

son, Intelligence Testing, in The Death Penalty and Intellectual Disability 124 (E. Polloway ed. 2015) (Watson) (discussing the composite-score approach as an appropriate method in the death-penalty context).

The estimate produced by a composite-score calculation can be interpreted like any other IQ score. In other words, a composite-score estimate of 70 reflects intellectual functioning that is "significantly subaverage." See Schneider, Oxford Handbook 290–291. And because using multiple scores can increase measurement precision, the standard error for a composite score will often be smaller than that for any constituent test score. *Id.*, at 291; APA Handbook 415–417. The resulting confidence interval for a composite score will thus be narrower. *Id.*, at 417.

Computing a composite score and its associated standard error of measurement is a multistep calculation that requires the defendant to provide certain statistics about the tests that he has taken. *Id.*, at 416–417; Watson 124. When a defendant provides all these data, courts, with the assistance of expert witnesses, can construct a composite score and its corresponding confidence interval. Unless that interval spans 70 or below, courts may deny *Atkins* relief.

Page Proof Pending Publication

Second, if a defendant fails to provide the information necessary to compute a composite score, the "next best practice" for estimating someone's "true" IQ is to take the median value of his scores. Watson 124. The median score is a "reasonable estimate" of a defendant's "true" IQ that is "appropriate and useful" where the 95% confidence intervals for all of an individual's scores overlap. APA Handbook 415. Thus, when this condition is met, courts adjudicating *Atkins* claims can "reasonabl[y]" and "appropriate[ly]" conclude that a defendant's IQ is above 70 when his median score exceeds 70. APA Handbook 415.

Third, some have suggested that it may be valid for an expert witness to take a less formal approach and make a judgment call about the "central tendency" of a defendant's

various scores. *Ibid.* When a defendant takes multiple tests, his scores will usually "cluster" around his "true" IQ. A. Frances, Essentials of Psychiatric Diagnosis: Responding to the Challenge of DSM–5, pp. 30–31 (2013) (Frances). Under this approach, when an expert determines that a defendant's scores "cluster," or evince a "central tendency," above 70, a court can reasonably conclude that a defendant's "true" IQ exceeds 70.

Any one of these approaches provides a reasonable way to evaluate whether a defendant's IQ is 70 or below in *Atkins* cases involving multiple scores. And when a court using a reasonable method concludes that a defendant's "true" IQ is above 70, it may reject an *Atkins* claim solely on that ground.

II

The courts below did not apply any defensible method to determine Smith's IQ. To the contrary, they relied on psychologically, statistically, and legally unsound analyses to conclude that Smith's IQ is 70 or below. At the very least, we should reverse and remand to give the lower courts an opportunity to perform a proper analysis.

Page Proof Pending Publication

A

Consider first the Eleventh Circuit's 2023 decision, which affirmed that Smith was entitled to *Atkins* relief. The Eleventh Circuit's analysis started off on the right foot. It explained that Smith "ha[d] the burden of proving" that he possessed "significant subaverage intellectual functioning." *Smith* v. *Commissioner*, 67 F. 4th 1335, 1345 (2023) (*per curiam*) (internal quotation marks omitted). Likewise, the court correctly recognized that "[w]hether Smith has significantly subaverage intellectual functioning turns on whether he has an IQ equal to or less than 70." *Ibid.* Thus, in upholding the lower court's decision to grant Smith *Atkins* relief, the Eleventh Circuit necessarily concluded that his "true" IQ was 70 or lower.

In reaching this conclusion, however, the Eleventh Circuit employed an illegitimate approach to analyzing Smith's scores. The record below contained five valid IQ scores for Smith: 75, 74, 72, 78, and 74. 67 F. 4th, at 1345–1346. When assessing whether Smith's IQ was 70 or lower based on these data, the Eleventh Circuit did not employ any recognized method for analyzing multiple test scores. Instead, it determined Smith's "true" IQ by taking the value at "the lower end" of the confidence interval for "his lowest IQ score." *Id.*, at 1346. Here, Smith's lowest valid score was 72, with a standard error of measurement of 3. *Id.*, at 1340. From those values, the Eleventh Circuit determined that Smith's IQ was "actually as low as 69" and his *Atkins* claim therefore met the 70-IQ cutoff. 67 F. 4th, at 1349. In other words, under the Eleventh Circuit's view, whenever the lower bound of a defendant's lowest score spans 70 or lower, his *Atkins* claim satisfies the IQ threshold, and courts must "move on" to consider evidence for other *Atkins* criteria. 67 F. 4th, at 1347.

Page Proof Pending Publication

This approach is flagrantly unsound. When a defendant has multiple IQ scores, it is indefensible to use the lower bound of his lowest score to determine whether his "true" IQ is 70 or below. Such an approach contravenes basic principles of psychological measurement and statistics.

First, psychometric literature teaches that when an individual has multiple IQ scores, the "higher scores are likely to be more indicative" of a person's intelligence than the lower scores. Frances 31; accord, S. Whitaker, The Stability of IQ in People With Low Intellectual Ability: An Analysis of the Literature, 46 Intellectual and Developmental Disabilities, No. 2, p. 126 (2008) (Whitaker) (noting it is "likely that the higher result [is] the more accurate"). This asymmetry reflects the fact that the possible sources of error in an individual's IQ-test performance, such as uncooperativeness, anxiety, sleep deprivation, malingering, or other mental-health disorders, "will tend to reduce" one's score. *Ibid.*

In contrast, there is "no reason why" an IQ score would overestimate someone's intelligence. Frances 31. This principle counsels against making decisions based on someone's lowest score.

The Eleventh Circuit flipped this principle of psychology on its head by giving dispositive weight to Smith's lowest score, which was likely "subject to more error" and "less accurate" than the others. Whitaker 126. If anything, the Eleventh Circuit should have given greater weight to Smith's higher scores of 75 and 78, which indicate that *Atkins* does not bar his execution. See *Hall*, 572 U. S., at 715 (noting that the defendant conceded the validity of a bright-line 75-IQ cutoff for *Atkins* claims).

Second—and most critically—the Eleventh Circuit's sole reliance on the lower bound of Smith's lowest score reflects a basic misunderstanding of statistics. When clinicians construct a confidence interval using the standard error of measurement, their calculations rely on the assumption that a defendant's test scores are normally distributed around his "true" IQ—*i. e.*, if a defendant took a large number of IQ tests, the scores would form a bell curve centered on his "true" IQ. Cohen 176; K. Widaman, Concepts of Measurement, in The Death Penalty and Intellectual Disability 68 (E. Polloway ed. 2015). Under that assumption, an individual's score on any given test is more likely to be close to his "true" IQ than far away from it. This fact, in turn, means that the values near the center of a confidence interval are more likely estimates of the defendant's "true" IQ than the values at the interval's upper and lower bounds. See G. Cumming & F. Fidler, Confidence Intervals Give Better Answers, 217 J. Psychology 18 (2009); G. Cumming, Inference by Eye: Pictures of Confidence Intervals and Thinking About Levels of Confidence, 29 Teaching Statistics 90–91 (2007).

The Eleventh Circuit's analysis ignored this attribute of confidence intervals. It concluded that Smith's IQ was 70 or below because the lower bound of the interval for one score

Page Proof Pending Publication

was 69. But the fact that 69 marked the lower limit of the interval meant that this value was *less* likely to reflect Smith's "true" IQ than other, higher values in the interval. Once again, the Eleventh Circuit's analysis was precisely backward.

The Eleventh Circuit attempted to justify its approach by citing *Hall* and *Moore*. On its reading of those cases, any time that the lower bound of a defendant's lowest score descends to 70 or below, IQ cannot be dispositive, and courts must decide an *Atkins* claim based on evidence of the defendant's adaptive functioning. 67 F. 4th, at 1348–1349 ("*Hall* and *Moore* required the district court to turn to evidence of Smith's adaptive deficits because the lower end of his standard-error range was 69"). But as we recognized the last time that this case was before us, neither *Hall* nor *Moore* established any rules for analyzing multiple IQ scores, much less the one-low-score approach that the Eleventh Circuit took. *Hamm*, 604 U. S., at 2 ("This Court has not specified how courts should evaluate multiple IQ scores" (citing *Hall*, 572 U. S., at 714, and *Moore*, 581 U. S., at 1)).

Page Proof Pending Publication

Start with *Hall*. To be sure, the defendant in that case had taken multiple IQ tests. 572 U. S., at 707. But neither the Florida courts nor this Court considered the cumulative significance of his scores. See *Hall* v. *State*, 109 So. 3d 704, 707–711 (Fla. 2012) (*per curiam*); *Hall*, 572 U. S., at 724. Under then-controlling Florida case law, state courts considered each score individually. See *Cherry* v. *State*, 959 So. 2d 702, 712–714 (Fla. 2007). Unless a defendant provided at least one score of 70 or below, Florida courts would deny relief. Although *Hall* rejected this approach, the decision did not explain how courts should consider the cumulative significance of multiple scores. To the extent that *Hall* addressed multiple-score analysis at all, it held only that courts must "take into account" potential measurement error. 572 U. S., at 724. *Hall* did not, however, explain *how* to account for error across multiple scores. It merely noted that such

analysis is a "complicated endeavor," one that neither Florida courts nor this Court had undertaken. *Id.*, at 714. This cursory discussion is hardly the sort of treatment that the Court would have given if it had intended to impose a one-low-score approach.[3]

Moore did not mandate the Eleventh Circuit's approach, either. As I have already explained, *Moore* prohibited courts from using extrinsic facts about a defendant to draw conclusions about where his "true" IQ falls within a confidence interval. Beyond that, *Moore*'s IQ discussion merely reaffirmed *Hall*'s holding that courts must consider the standard error of measurement when applying a 70-IQ cutoff to a single score. 581 U. S., at 14. *Moore* did not articulate any rules about analyzing multiple scores in aggregate. As in *Hall*, the defendant in *Moore* had multiple IQ scores in the record, *id.*, at 10, but neither the Texas court nor this Court considered those scores collectively, see *Ex parte Moore*, 470 S. W. 3d, at 519; *Moore*, 581 U. S., at 14.

Page Proof Pending Publication

If psychology, statistics, and our case law do not suffice to underscore the flaws of the Eleventh Circuit's one-low-score approach, common sense seals the deal. The Eleventh Circuit's approach would produce absurd results. Imagine that a defendant had taken an IQ test every year from first grade through high-school graduation. Suppose that five of these scores were 100, five were in the 90s, one was in the 80s, and one was 71 on a test with a standard error of 3. On this hypothetical record, there would be no practical likelihood that the defendant's IQ is 70 or below. Rather, the most reasonable conclusion would be that the 71 score is an outlier,

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[3] *Hall* also warned that, even when a defendant has multiple scores, the tests "may be . . . administered in a consistently flawed manner [such] that even a consistent score is not conclusive." 572 U. S., at 714. It does not follow, however, that multiple scores are never dispositive. If a defendant believes that one or more of his test scores are flawed, he is of course free to argue that courts should disregard those scores when determining his "true" IQ. *Id.*, at 743, n. 14 (ALITO, J., dissenting).

and that its confidence interval does not capture the defendant's "true" IQ. But under the Eleventh Circuit's one-low-score rule, a court could not deny *Atkins* relief on these scores unless it separately found inadequate the defendant's adaptive-functioning evidence. In effect, a court would need to ignore the defendant's 11 higher scores and consider only the outlier. That approach cannot be correct, and our case law does not command it.

In short, the Eleventh Circuit's 2023 analysis was indefensible. In determining whether Smith satisfied a 70-IQ cutoff, the court focused on the lower bound of the confidence interval for Smith's lowest score—the least plausible region of the interval for what was likely Smith's least accurate score. Because this Court was troubled by this deeply flawed approach, we summarily vacated the Eleventh Circuit's decision last Term. *Hamm*, 604 U. S., at 1–3.

B

Page Proof Pending Publication

The Eleventh Circuit's attempt to resuscitate its decision on remand remained flawed. Once again, the Eleventh Circuit began by correctly noting that *Atkins* requires Smith to prove that "his IQ is 70 or lower." *Smith* v. *Commissioner, Ala. Dept. of Corrections*, No. 21–14519 (Nov. 14, 2024) (*per curiam*), App. to Pet. for Cert. 3a. The court then concluded that "the record evidence plausibly supports" the finding that "Smith's true IQ score *could be* less than or equal to 70." *Id.*, at 7a (emphasis added). In support of this conclusion, the Eleventh Circuit quoted the District Court's analysis:

> "'Smith did not consistently score so high that the [c]ourt is confident that the lowest score can be thrown out as an outlier or that the standard error for the' other tests, which individually suggest Smith's true IQ *may be* 70 or lower, 'can be disregarded.'" *Id.*, at 6a (quoting *Smith* v. *Dunn*, Civ. Action No. 05–cv–00474 (SD Ala.,

Aug. 17, 2021), App. to Pet. for Cert. 70a; emphasis added).

This analysis cannot justify granting *Atkins* relief. First, it is not enough for Smith to show that his "true" IQ "could be" or "may be" 70 or lower. Rather, Smith needed to show that his IQ *is* 70 or lower. Moreover, even if the District Court definitively concluded that Smith had a 70-or-lower IQ, the court's reasoning could not support such a conclusion. For reasons that I have already discussed, it is unsound to hold that Smith satisfied a 70-IQ threshold simply because the lower limits of the intervals for some scores descended to 70. To obtain relief, Smith needs to prove that his scores cumulatively demonstrate a "true" IQ of 70 or lower.

Apart from test scores, the Eleventh Circuit's decision on remand also relied on evidence of Smith's adaptive functioning to conclude that his IQ was 70 or lower. In particular, the Eleventh Circuit pointed to the District Court's conclusion that "[a]though [Smith] has scored above 70 on many of his IQ tests, his adaptive behavior problems are severe enough that his actual functioning is lower." App. to Pet. for Cert. 61a. In other words, although Smith's scores all exceeded 70, the courts concluded that his "actual" IQ was lower using evidence other than his scores and their standard errors. *Ibid.*

Page Proof Pending Publication

This line of reasoning is equally untenable, as it commits the same error that the Texas Court of Criminal Appeals made in *Moore*. Estimates of Smith's IQ spanned the 70s, yet the courts below concluded that Smith's "actual" IQ more likely fell in the 70-or-lower range of these intervals. App. to Pet. for Cert. 61a. As in *Moore*, the lower courts grounded this quantitative conclusion on "factors unique to [Smith]." 581 U. S., at 14. Specifically, the District Court deflated its estimate of Smith's IQ based on details about his social and interpersonal difficulties, his struggles living independently, and his academic underperformance. App. to

Pet. for Cert. 61a. As in *Moore*, however, none of that evidence permits the lower courts to conclude that Smith's "true" IQ is more likely to fall at the lower (or higher) end of an estimated range. 581 U. S., at 14; accord, Whitaker 126 ("Other sources of information" about "how the individual functions in his/her environment" cannot be "used quantitatively to reduce margin of error in an IQ score").

Indeed, the evidence on which lower courts relied to deflate their estimate of Smith's IQ was even less relevant than the evidence that the Texas court considered in *Moore*. In *Moore*, the Texas court relied on evidence that plausibly caused a test to underestimate the defendant's IQ, such as his possible depression on test day and his strong incentive to underperform. *Ex parte Moore*, 470 S. W. 3d, at 517–519. Here, in contrast, the lower courts discounted Smith's IQ using facts completely unrelated to his testing, such as his failure to maintain a bank account and his difficulties purchasing groceries. App. to Pet. for Cert. 87a. If *Moore* prohibits courts from using test-day details to inflate an IQ estimate, then surely it prohibits courts from using sundry facts about a defendant's life before prison to deflate an estimate.[4] Yet this is precisely the evidence on which the courts below relied to conclude that Smith's IQ was 70 or below.

Page Proof Pending Publication

Because the Eleventh Circuit continued to rely on unsound reasoning, I would reverse and remand its 2024 decision with instructions to reevaluate Smith's IQ using any sound method.

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[4] Our earlier summary-vacatur opinion in this case is not to the contrary. In suggesting that courts might consider "expert testimony" when evaluating Smith's scores, we simply recognized that litigants usually introduce test scores, evidence of their validity, and any relevant statistical analysis through expert testimony. *Hamm* v. *Smith*, 604 U. S. 1, 2 (2024) (*per curiam*). We did not suggest that courts may factor in expert testimony about a defendant's adaptive functioning when determining whether the defendant satisfies the 70-IQ threshold.

C

Smith's attempts to defend the judgment below are similarly unpersuasive. Smith contends that *Hall* and *Moore* require courts to "consider other evidence of intellectual functioning" whenever "IQ scores alone are inconclusive." Brief for Respondent 24. But this contention only raises the question of when multiple scores are "inconclusive" under *Atkins*. When pressed at oral argument to address this question, Smith's counsel steadfastly refused to give a clear or consistent answer. At one point, counsel conceded that several sufficiently high IQ test scores could be dispositive even if one score was 71. Tr. of Oral Arg. 104–105. Moments later, however, counsel suggested that *any* time the confidence interval for a test score falls below 70, courts must consider evidence beyond IQ tests. *Id.*, at 120. When we asked counsel to clarify when, if ever, test scores alone could be conclusive, he retorted only that Smith was "not in the same time zone" as a defendant for whom scores might be dispositive. *Id.*, at 116. Obviously, an "I know it when I see it" rule is plainly inappropriate for determining whether to impose the death penalty.[5]

Page Proof Pending Publication

[5] Certain *amici* suggest that IQ scores should *never* be dispositive in *Atkins* claims because clinicians would never treat IQ as conclusive in diagnosing intellectual disability. Brief for American Psychological Association et al. as *Amici Curiae* 6–8 (APA Brief); Brief for American Association on Intellectual and Development Disabilities et al. as *Amici Curiae* 27–28 (AAIDD Brief). That argument is wrong several times over. For one, *Hall* recognized (consistent with Smith's concession) that IQ scores could be dispositive under *Atkins* if they are sufficiently high. 572 U. S., at 711–712, 715. More fundamentally, *amici* err by assuming that IQ's role under *Atkins* must mirror its role in the clinical context. As *amici* admit, the "clinical framework for diagnosing intellectual disability was largely developed . . . independently of . . . the criminal cour[t]." AAIDD Brief 8. And the APA stresses that clinical diagnostic criteria are not well "tailored" for making decisions in "the death penalty context." APA Brief 5. Thus, although our *Atkins* doctrine has consulted the diagnostic criteria for intellectual disability, this Court has rejected the view that

Smith separately argues that the District Court's analysis merely tracked Alabama law, which does not bar consideration of adaptive-functioning evidence even if a defendant fails to produce a 70-or-lower test score. Brief for Respondent 45–46. But whether the District Court correctly granted habeas relief turns on whether Smith's death sentence violated the Constitution, not Alabama law.[6] See 28 U. S. C. § 2254(a). Regardless, Alabama law, like our *Atkins* doctrine, requires a defendant to prove that his IQ is 70 or below. See *Ex parte Perkins*, 851 So. 2d, at 456. Smith has thus far failed to do so under any valid method, and he cannot identify a single Alabama case in which a court granted relief after concluding that a defendant's IQ exceeded 70. See, *e. g.*, *Mulkey* v. *State*, —— So. 3d —— (Ala. Crim. App. 2025) (applying a 70 IQ cutoff and denying relief to a defendant who scored 72). The District Court's decision therefore fares no better under Alabama law.

Page Proof Pending Publication

courts must yield to every putative expert consensus. See *Moore* v. *Texas*, 581 U. S. 1, 13 (2017); *id.*, at 22 (ROBERTS, C. J., dissenting) ("clinicians, not judges, should determine clinical standards; and judges, not clinicians, should determine the content of the Eighth Amendment"). And as I explain below, eschewing bright-line IQ thresholds would place our *Atkins* doctrine on a collision course with its own logic and with our Eighth Amendment jurisprudence more broadly. See *infra*, at 336–338.

[6] Although JUSTICE SOTOMAYOR asserts that the correctness of the District Court's intellectual-disability determination turns on Alabama law, *ante*, at 297, she ultimately concludes that whether Smith is disabled is a factual issue subject to clear-error review. *Ante*, at 298–299. Our decisions, however, indicate that IQ analyses in *Atkins* claims pose mixed questions of law and fact. A defendant's specific scores are factual issues, whereas the propriety of a court's interpretation of those scores can be an issue of federal law. See *Hall*, 572 U. S., at 723 (concluding that the Constitution prohibited Florida's approach to analyzing IQ scores); *Moore*, 581 U. S., at 13–15 (vacating the Texas court's IQ analysis because it contravened our holding in *Hall*, not because it constituted clear factual error).

* * *

The lower courts' IQ analysis was flawed at every stage of this litigation. Because the courts below have yet to provide a sound basis for granting Smith *Atkins* relief, the Court should reverse the Eleventh Circuit's decision and remand this case for further proceedings.

III

JUSTICE SOTOMAYOR attempts to justify dismissing this case on the ground that it does not meaningfully present the question on which we granted certiorari. This assertion blinks reality. The question on which we granted certiorari asks how courts should "consider the cumulative effective of multiple IQ scores in assessing an *Atkins* claim." 605 U. S. 1001. When the courts below assessed Smith's claim, they evaluated whether his "multiple IQ scores" were "consistently . . . so high" as to establish "that Smith is not intellectually disabled" under *Atkins*. App. to Pet. for Cert. 70a. Thus, this case plainly presents the question on which we granted certiorari, as well as the intertwined question of whether the courts below properly analyzed Smith's scores when granting him *Atkins* relief. Contra, *ante,* at 287–289 (SOTOMAYOR, J., concurring).

Page Proof Pending Publication

JUSTICE SOTOMAYOR nevertheless emphasizes that "Alabama never argued that the [District Court] must . . . us[e] any particular method (or set of methods) to assess whether an *Atkins* claimant has proven significantly subaverage intellectual functioning." *Ante,* at 287. But it was not Alabama's burden to explain why Smith's IQ scores disqualified him from *Atkins* relief. Rather, Smith has the burden of proving that his scores establish an IQ of 70 or less using some defensible method. See *Hawk* v. *Olson*, 326 U. S. 271, 279 (1945) ("Petitioner carries the burden in a collateral [habeas] attack"). Alabama has consistently maintained that Smith fails to satisfy this burden given his scores. See Respondent's Post-Hearing Brief in *Smith* v. *Dunn*, No. 05–cv–00474

(SD Ala.), ECF Doc. 129, pp. 36–46. The District Court held otherwise only by engaging in unsound analysis, and Alabama has objected to that analysis at every stage of the litigation since. See Respondent's Motion to Alter or Amend the Judgment in *Smith*, *supra*, ECF Doc. 136, pp. 3–7; Brief for Appellant in No. 21–14519 (CA11), ECF Doc. 12, pp. 40–42; Pet. for Cert. in *Hamm* v. *Smith*, O. T. 2023, No. 23–167, pp. 10–20; Pet. for Cert. 26–31. Having properly preserved this issue, Alabama could "'make any argument in support'" of its position in this Court, even if it did not present those "'precise arguments'" below. *Lebron* v. *National Railroad Passenger Corporation*, 513 U. S. 374, 379 (1995). Indeed, it was particularly appropriate for Alabama to raise arguments about cumulative-score analysis given that we specifically directed the State to do so.[7] See 605 U. S. 1001. In suggesting that Alabama needed to raise these same exact arguments below, JUSTICE SOTOMAYOR misunderstands basic party-presentation rules and joins the lower courts in improperly shifting the burden to Alabama.

Page Proof Pending Publication

To be sure, I agree with JUSTICE SOTOMAYOR that the decision below was not "trained on" any rigorous multi-score analysis. *Ante*, at 286. But that shortcoming is precisely why we should reverse the decision below and remand this case for further proceedings.

IV

Today, the Court declines to offer guidance on analyzing multiple IQ scores despite receiving significant briefing on the issue. The Court's failure to resolve this issue will have

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[7] The crux of JUSTICE SOTOMAYOR's stance appears to be that the Court erred by granting certiorari on the question as formulated by the United States. *Ante*, at 285. But this petition-stage gripe is no reason to dismiss the case a year later. The parties and *amici*—not to mention Members of this Court—devoted substantial resources to this case and thoroughly addressed the question presented, and that question is dispositive to the judgment below.

regrettable consequences. Without clear rules for determining when multiple IQ scores are dispositive, nearly every *Atkins* case will devolve into an amorphous, individualized determination of whether the defendant meets an imprecisely defined notion of "significantly subaverage intellectual functioning" under which the role of IQ is not clearly articulated. See *ante*, at 294–298 (SOTOMAYOR, J., concurring) (describing that approach as "holistic"). Such an approach will place our *Atkins* doctrine out of step with psychology, our death-penalty jurisprudence, and *Atkins* itself. In the field of psychology, IQ testing remains the standard practice for measuring intellectual functioning, and it is difficult to find a definition of "significantly subaverage intellectual functioning" that does not center on IQ. See, *e. g.*, R. Schalock, R. Luckasson, & M. Tasse, Intellectual Disability: Definition, Diagnosis, Classification, and Systems of Supports 29, 130 (12th ed. 2021) (defining the condition as having an IQ two standard deviations below the mean); APA Handbook 392–393.

Page Proof Pending Publication

It is likewise difficult for courts to develop objective, judicially manageable standards for evaluating intelligence that do not turn on IQ. Without clear IQ criteria, *Atkins* proceedings will be little more than battles of experts, with one side saying that the defendant's intellectual functioning is "significantly subaverage," and the other saying that it is not. Whether a defendant lives or dies will hinge on which expert a judge finds more credible. Cf. 536 U. S., at 353 (Scalia, J., dissenting) (predicting that *Atkins* will "tur[n] the process of capital trial into a game"). Indeed, both the District Court and Eleventh Circuit openly admitted that whether Smith would be executed "'largely [came] down to which expert' the district court 'believed.'" App. to Pet. for Cert. 8a (quoting *id.*, at 91a; alteration in original); see 67 F. 4th, at 1353.

This unmoored approach to *Atkins* will produce the very sort of "arbitrary and unpredictable" outcomes that our post-*Gregg* death-penalty jurisprudence has sought to avoid.

California v. *Brown*, 479 U. S. 538, 541 (1987); see *Gregg* v. *Georgia*, 428 U. S. 153 (1976). If *Atkins* has any prospect of surviving as a workable doctrine, lower courts need "'clear and objective standards' that provide 'specific and detailed guidance'" on how to analyze multiple IQ scores. *Godfrey* v. *Georgia*, 446 U. S. 420, 428 (1980) (plurality opinion) (footnote omitted). The Court's refusal to provide such guidance will continue to undermine the intelligibility of this doctrine.

A case-by-case approach without categorical IQ rules also runs contrary to *Atkins*'s very premise. As I noted at the outset, *Atkins* rejected *Penry*'s regime, under which the relationship between a capital defendant's intellectual capability and his culpability would be assessed on an individualized, case-by-case basis. In its place, *Atkins* adopted a categorical rule under which IQ would necessarily play a central role. For this rule to function in a defensible way, the Court needs to elucidate sound and reputable methods for dealing with multiple IQ scores. If courts relegate the 70-IQ cutoff to a perfunctory formality and the main point of contention in *Atkins* cases becomes an individualized assessment of a defendant's adaptive functioning, then the *Atkins* Court's basis for imposing a categorical rule will disintegrate.[8]

Page Proof Pending Publication

[8] Indeed, the continued diminution of IQ's role in *Atkins* claims means that capital sentencing will turn on individualized determinations that are less relevant to the Eighth Amendment than those that occurred under the pre-*Atkins* regime. Our Eighth Amendment jurisprudence evaluates the constitutionality of a criminal penalty by asking whether imposing the penalty would advance traditional goals of punishment, such as retribution or deterrence. See, *e. g.*, *Roper* v. *Simmons*, 543 U. S. 551, 571 (2005). Before *Atkins*, a sentencing jury could consider the direct relationship between intellectual disability and those goals. For instance, a jury could consider how a defendant's intellectual functioning bore on his just deserts or his capacity to control his actions, understand consequences, and discern right from wrong. See *Penry* v. *Lynaugh*, 492 U. S. 302, 322–328 (1989). In contrast, individualized adaptive-functioning analyses turn on assorted details about a defendant's life, such as how much income he made or whether he cooked his own food. See, *e. g.*, *Smith* v. *Dunn*,

* * *

This case presented an opportunity for the Court to explain how courts should evaluate *Atkins* claims when the defendant has multiple IQ test scores. Nothing in our case law sanctioned the lower courts' analyses, and we should have used this case to bring clarity to our *Atkins* doctrine. By instead remaining silent, the Court exacerbates the confusion that plagues our jurisprudence in this area. If this Court continues to shy away from opportunities to provide workable doctrine, we should not be surprised if petitions asking us to overrule *Atkins*, *Hall*, and *Moore* arrive at our doorsteps soon. See, *e. g.*, Brief for United States as *Amicus Curiae* 26–32 (asking the Court to overrule *Hall* and *Moore*); Brief for Commonwealth of Kentucky as *Amicus Curiae* 2 (urging the Court to "engage in a more wholesale rethinking" of *Atkins*); *ante*, at 301 (THOMAS, J., dissenting); cf. Brief for State of Idaho et al. as *Amici Curiae* 14–17 (urging the Court to "undercut the 'evolving standards of decency' framework" even though "no party has asked for . . . *Atkins* to be overruled" here); Pet. for Cert. in *Ohio* v. *Ford*, O. T. 2019, No. 19–1191, pp. 28–30 (asking this Court to replace our current *Atkins* doctrine with a rule barring the execution of only those who meet the Model Penal Code's definition of insane).

Page Proof Pending Publication

Civ. Action No. 05–cv–00474 (SD Ala., Aug. 17, 2021), App. to Pet. for Cert. 82a, 87a. These types of details are far more attenuated from the Eighth Amendment principles of culpability and punishment that drove the decision in *Atkins* in the first place. See *Hall*, 572 U. S., at 737 (ALITO, J., dissenting); *Atkins* v. *Virginia*, 536 U. S. 304, 317–321 (2002) (grounding the Court's holding on the conclusion that imposing the death penalty on intellectually disabled persons does not "measurably advance" the goals of retribution or deterrence). Thus, the less weight our *Atkins* doctrine places on IQ, the less that doctrine coheres with our Eighth Amendment jurisprudence.

REPORTER'S NOTE

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. A list of counsel who argued or filed briefs in this case, and who were members of the bar of this Court at the time this case was argued, has been inserted following the syllabus. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

Page Proof Pending Publication

p. 289, n. 4, line 3 from bottom: "(opinion of ALITO, J.)" is inserted after "321"

p. 323, line 8 from bottom: "of" is inserted after "all"